

[Query](#) [Reports](#) [Utilities](#) [Help](#) [Log Out](#)

NDISPO,TERMED

U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:09-cv-02977-REB-KLM

Iowa Pacific Holdings, LLC v. National Railroad Passenger Corporation

Assigned to: Judge Robert E. Blackburn

Referred to: Magistrate Judge Kristen L. Mix

Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 12/21/2009

Date Terminated: 07/13/2011

Jury Demand: Plaintiff

Nature of Suit: 190 Contract: Other

Jurisdiction: Diversity

Plaintiff

Iowa Pacific Holdings, LLC

represented by **Jeffery D. Bursell**

Dewhirst Dolven & Parker, LLC

600 South Cherry Street

Suite 530

Denver, CO 80246

303-757-0003

Fax: 303-757-0004

Email: jbursell@dewhirstdolgen.com

TERMINATED: 01/12/2011

LEAD ATTORNEY

Brian Robert Orr

Lowis & Gellen, LLP

175 West Jackson Boulevard

Suite 950

Chicago, IL 60604

312-346-2500

Fax: 312-346-1003

Email: borr@lgcounsel.com

ATTORNEY TO BE NOTICED

Gerald Haberkorn

Lowis & Gellen, LLP

175 West Jackson Boulevard

Suite 950

Chicago, IL 60604

312-364-2500

Fax: 312-364-1003

Email: geraldh@lowis-gellen.com

ATTORNEY TO BE NOTICED

Robert H. Smeltzer

Lowis & Gellen, LLP

175 West Jackson Boulevard

Suite 950

Chicago, IL 60604

312-364-2500
Fax: 312-364-1003
Email: rsmeltzer@howardandhoward.com
ATTORNEY TO BE NOTICED

V.

Defendant

National Railroad Passenger Corporation

represented by **Daniel J. Dunn**
Hogan Lovells US LLP
1601 Wewatta Street
Suite 900
Denver, CO 80202
303-899-7300
Fax: 303-899-7333
Email: dan.dunn@hoganlovells.com
ATTORNEY TO BE NOTICED

David A. DeMarco
Hogan Lovells US LLP
1601 Wewatta Street
Suite 900
Denver, CO 80202
303-899-7300
Fax: 303-899-7333
Email: david.demarco@hoganlovells.com
ATTORNEY TO BE NOTICED

Dugan William Bliss
U.S. Securities & Exchange Commission
1961 Stout Street
Byron G. Rogers Federal Building
Suite 1700
Denver, CO 80294-1961
303-844-1000
Fax: 303-844-1068
Email: blissd@sec.gov
TERMINATED: 08/30/2010

Edwin Packard Aro
Arnold & Porter Kaye Scholer LLP
1144 Fifteenth Street
Suite 3100
Denver, CO 80202-2569
303-863-1000
Email: ed.aro@arnoldporter.com
TERMINATED: 09/07/2010

Jaasi Jared Munanka
Hogan Lovells US LLP
1601 Wewatta Street
Suite 900
Denver, CO 80202

303-899-7381

Fax: 303-899-7333

Email: jaasi.munanka@hoganlovells.com

TERMINATED: 03/08/2011

Date Filed	#	Docket Text
12/21/2009	1	Verified COMPLAINT for Injunctive and Other Relief against National Railroad Passenger Corporation (Filing fee \$ 350, Receipt Number 24451) Summons Issued, filed by Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Civil Cover Sheet, # 7 Receipt)(jak,) (Entered: 12/22/2009)
12/22/2009	2	(WITHDRAWN) MOTION for Temporary Restraining Order and Mandatory Preliminary Injunction by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 TRO Information Sheet, # 2 Certificate Support Motion for TRO, # 3 Proposed Order (PDF Only))(Bursell, Jeffrey) Modified on 1/5/2010 to WITHDRAW pursuant to the Minute Order dated 01/04/2010 (sah,). (Entered: 12/22/2009)
12/22/2009	3	BRIEF in Support of 2 MOTION for Temporary Restraining Order <i>and Mandatory Preliminary Injunction</i> filed by Plaintiff Iowa Pacific Holdings, LLC. (Bursell, Jeffrey) (Entered: 12/22/2009)
12/22/2009	4	SCHEDULING ORDER. On or before 8:00 p.m. Mountain Standard Time, Tuesday, 12/22/2009, defendant SHALL FILE a response1 to Plaintiffs Motion for Temporary Restraining Order and Mandatory Preliminary Injunction 2 filed 12/22/2009. On or before 9:00 a.m. Mountain Standard Time, Wednesday, 12/23/2009 plaintiff SHALL FILE a reply to the response. On Wednesday, 12/23/2009, commencing at 10:00 a.m. Mountain Standard Time, reserving two hours, if necessary, the court SHALL HEAR Plaintiffs Motion for Temporary Restraining Order and Mandatory Preliminary Injunction 2 filed 12/22/2009. By Judge Robert E. Blackburn on 12/22/2009. (sah,) (Entered: 12/22/2009)
12/22/2009	5	MINUTE ORDER. That as soon as practicable, the plaintiff shall notify the defendant of the Scheduling Order 4 entered 12/22/2009; and that notification may be by e-mail, facsimile, telephone communication, or hand-delivery. By Judge Robert E. Blackburn on 12/22/2009. (sah2,) (Entered: 12/22/2009)
12/22/2009	6	NOTICE re 5 Minute Order, by Plaintiff Iowa Pacific Holdings, LLC (Attachments: # 1 Exhibit A)(Bursell, Jeffrey) (Entered: 12/22/2009)
12/22/2009	7	BRIEF in Opposition to 2 MOTION for Temporary Restraining Order <i>and Mandatory Preliminary Injunction Defendant's Brief in Opposition to Motion</i> filed by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4)(Aro, Edwin) (Entered: 12/22/2009)
12/23/2009	8	REPLY to Response to 2 MOTION for Temporary Restraining Order <i>and Mandatory Preliminary Injunction</i> filed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Affidavit Affidavit of Ed Ellis, # 2 Affidavit Clark Johnson)(Bursell, Jeffrey) (Entered: 12/23/2009)
12/23/2009	9	SUPPLEMENT/AMENDMENT to 8 Reply to Response to Motion, (<i>Affidavit of Ed Ellis supplemented with Exhs.</i>) by Plaintiff Iowa Pacific Holdings, LLC. (Bursell, Jeffrey) (Entered: 12/23/2009)
12/23/2009	10	SUPPLEMENT/AMENDMENT to 8 Reply to Response to Motion, (<i>Affd of Clark Johnson signed</i>) by Plaintiff Iowa Pacific Holdings, LLC. (Bursell, Jeffrey) (Entered: 12/23/2009)

		12/23/2009)
12/23/2009	11	Minute Entry for Hearing on 2 Motion for Temporary Restraining Order, held on 12/23/2009 before Judge Robert E. Blackburn in courtroom A201. Motion is taken under advisement; written ruling to issue as soon as practicable today. (Court Reporter: Therese Lindblom) (rebcd) (Entered: 12/23/2009)
12/23/2009	12	ORDER Denying 2 Plaintiff's MOTION for Temporary Restraining Order and Mandatory Preliminary Injunction in so far as it seeks a temporary restraining order. Parties to contact chambers on 1/6/10 at 10:00 a.m. to set plaintiff's motion for preliminary injunction 2 for hearing, if necessary, by Judge Robert E. Blackburn on 12/23/09. (gmssl,) (Entered: 12/23/2009)
12/28/2009	13	MINUTE ORDER : The parties shall contact the court by telephone on 12/30/2009 at 10:00 AM to schedule a hearing on the plaintiffs 2 motion for preliminary injunction. The telephone setting conference previously set for 01/06/2010 at 10:00 AM is vacated, by Judge Robert E. Blackburn on 12/28/2009. (wjc,) (Entered: 12/28/2009)
12/30/2009	14	ORDER REFERRING CASE to Magistrate Judge Kristen L. Mix, for non-dispositive matters, by Judge Robert E. Blackburn on 12/30/09. (rebcd) (Entered: 12/30/2009)
12/30/2009	15	DEMAND for Trial by Jury by Plaintiff Iowa Pacific Holdings, LLC. (Bursell, Jeffrey) (Entered: 12/30/2009)
12/30/2009	16	MOTION to Amend/Correct/Modify to Set a Supplemental Briefing Schedule for Plaintiff's Motion for Temporary Restraining Order and Mandatory Preliminary Injunction by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Proposed Order (PDF Only))(Munanka, Jaasi) (Entered: 12/30/2009)
12/30/2009	17	MOTION to Expedite for Limited Expedited Discovery by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Proposed Order (PDF Only))(Munanka, Jaasi) (Entered: 12/30/2009)
12/30/2009	18	ORDER SETTING SCHEDULING/PLANNING CONFERENCE: Scheduling Conference set for 3/4/2010 11:00 AM in Courtroom C204 before Magistrate Judge Kristen L. Mix. by Magistrate Judge Kristen L. Mix on 12/30/2009. (Attachments: # 1 Attach 1, # 2 Attach 2)(klmcd) (Entered: 12/31/2009)
01/04/2010	19	(VACATED) MINUTE ORDER by Judge Robert E. Blackburn on 1/4/10. The Defendant's Motion to Set a Supplemental Briefing Schedule...[#16] is GRANTED, consistent with the following orders: (1) That by January 6, 2010, at 12:00 p.m. (noon), the pltf shall file its supplemental brief addressing the issues now raised by and inherent to the Plaintiff's Motion for Temporary Restraining Order and Mandatory Preliminary Injunction [#2], insofar as the pltf is requesting the entry of a mandatory preliminary injunction; and (2) That by January 8, 2010, at 12:00 p.m. (noon), the deft shall file its response brief to the pltf's supplemental brief. It is FURTHER ORDERED that by January 5, 2010, at 12:00 p.m. (noon), the pltf shall file its response to the Defendant's Motion for Limited Expedited Discovery [#17], filed December 30, 2009. (rebcd) Modified on 1/5/2010 to VACATE pursuant to the Minute Order dated 01/04/2010 (sah,). (Entered: 01/04/2010)
01/04/2010	20	NOTICE re 3 Brief in Support of Motion, 2 MOTION for Temporary Restraining Order and Mandatory Preliminary Injunction and Request to Vacate Hearing by Plaintiff Iowa Pacific Holdings, LLC (Bursell, Jeffrey) (Entered: 01/04/2010)
01/04/2010	21	STIPULATION for Extension of Time of the Deadline for Defendant to Respond to 1 Plaintiff's Complaint by Defendant National Railroad Passenger Corporation. (Munanka,

		Jaasi) Modified on 1/5/2010 to create linkage (sah2,). (Entered: 01/04/2010)
01/04/2010	22	MINUTE ORDER. Plaintiffs Notice of Withdrawal of Motion for Preliminary Injunction and Request to Vacate Hearing on January 11 and 13, 2010 20 filed 01/04/2010, is APPROVED. Plaintiffs Motion for Temporary Restraining Order and Mandatory Preliminary Injunction 2 filed 12/22/2009, is deemed WITHDRAWN. That the Preliminary Injunction Hearing set for January 11 and 13, 2010, is VACATED. The courts Minute Order 19 entered 01/04/2010, is VACATED. By Judge Robert E. Blackburn on 01/04/2010. (sah,) (Entered: 01/05/2010)
01/05/2010	23	Utility Setting/Resetting Deadlines/Hearings: Pursuant to the Stipulation for Extension of Time filed 01/04/2010: National Railroad Passenger Corporation answer due 2/1/2010. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah2,) (Entered: 01/05/2010)
01/11/2010	24	NOTICE of Entry of Appearance by Gerald Haberkorn on behalf of Iowa Pacific Holdings, LLC (Haberkorn, Gerald) (Entered: 01/11/2010)
02/01/2010	25	<i>Defendant's</i> ANSWER to 1 Complaint, by National Railroad Passenger Corporation.(Aro, Edwin) (Entered: 02/01/2010)
02/03/2010	26	NOTICE of Entry of Appearance by Robert H. Smeltzer on behalf of Iowa Pacific Holdings, LLC (Smeltzer, Robert) (Entered: 02/03/2010)
02/03/2010	27	NOTICE of Entry of Appearance <i>and Substitution of Counsel</i> by Dugan William Edward Bliss on behalf of National Railroad Passenger Corporation (Bliss, Dugan) (Entered: 02/03/2010)
02/05/2010	28	Unopposed MOTION to Withdraw as Attorney <i>of Record</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Order (PDF Only))(Munanka, Jaasi) (Entered: 02/05/2010)
02/05/2010	29	MEMORANDUM regarding 28 Unopposed MOTION to Withdraw as Attorney <i>of Record</i> filed by National Railroad Passenger Corporation.Motion referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 2/5/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebcd) (Entered: 02/05/2010)
02/05/2010	30	MINUTE ORDER granting 28 Unopposed Motion to Withdraw Jaasi J. Munanka As Counsel of Record for Defendant National Railroad Passenger Corporation. Attorney Jaasi Jared Munanka is relieved of any further representation of Defendant in this matter, by Magistrate Judge Kristen L. Mix on 2/5/10.(ebs,) (Entered: 02/05/2010)
02/26/2010	31	Proposed Scheduling Order by Defendant National Railroad Passenger Corporation. (Aro, Edwin) (Entered: 02/26/2010)
03/04/2010	32	MEMORANDUM regarding 17 MOTION to Expedite <i>for Limited Expedited Discovery</i> filed by National Railroad Passenger Corporation.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 3/4/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 03/04/2010)
03/04/2010	33	TRIAL PREPARATION CONFERENCE ORDER. Five (5) day Jury Trial set for 12/6/2010 08:30 AM in Courtroom A1001 before Judge Robert E. Blackburn. Trial Preparation Conference set for 11/19/2010 at 11:00 AM in Courtroom A1001 before Judge Robert E. Blackburn. by Judge Robert E. Blackburn on 3/4/10. (rebsec,) (Entered: 03/04/2010)
03/04/2010	34	Minute Entry for proceedings held before Magistrate Judge Kristen L. Mix: denying as moot 17 Defendants Motion for Limited Expedited Discovery; Scheduling Conference held on 3/4/2010. Discovery due by 9/3/2010, Dispositive Motions due by 10/8/2010, Settlement Conference set for 6/22/2010 01:30 PM in Courtroom C204 before Magistrate

		Judge Kristen L. Mix, Final Pretrial Conference set for 11/8/2010 10:00 AM in Courtroom C204 before Magistrate Judge Kristen L. Mix. (Court Reporter FTR - Kathleen Finney) (Attachments: # 1 Sedona Principles, # 2 CSS Instructions) (klmcd) (Entered: 03/04/2010)
03/04/2010	35	SCHEDULING ORDER: by Magistrate Judge Kristen L. Mix on 3/4/2010. (klmcd) (Entered: 03/04/2010)
04/28/2010	36	NOTICE of Change of Address <i>Notice of Change of Firm</i> by Jeffrey D. Bursell (Bursell, Jeffrey) (Entered: 04/28/2010)
04/29/2010	37	Partial MOTION for Summary Judgment <i>on Plaintiff's Claim for Breach of Oral Argument</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(Bliss, Dugan) (Entered: 04/29/2010)
05/06/2010	38	NOTICE of Change of Address <i>Notice of Change of Firm Name and E-Mail Address</i> by Edwin Packard Aro (Aro, Edwin) (Entered: 05/06/2010)
05/24/2010	39	RESPONSE to 37 Partial MOTION for Summary Judgment on Plaintiff's Claim for Breach of Oral Argument (ACTUALLY TITLED) IPH's Motion for Denial of Defendant's Motion for Partial Summary Judgment per Fed.R.Civ.P. 56(f) filed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit)(Smeltzer, Robert) (Modified on 6/18/2010 This appears to be a Motion and NOT a response)(erv,). (Entered: 05/24/2010)
06/15/2010	40	Stipulated MOTION to Vacate <i>and Reset Settlement Conference</i> by Defendant National Railroad Passenger Corporation. (Bliss, Dugan) (Entered: 06/15/2010)
06/16/2010	41	MEMORANDUM regarding 40 Stipulated MOTION to Vacate <i>and Reset Settlement Conference</i> filed by National Railroad Passenger Corporation.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 6/16/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 06/16/2010)
06/16/2010	42	Minute ORDER granting 40 Motion to Vacate and Reset Settlement Conference. The Settlement Conference set for 6/22/10 at 1:30 is VACATED. Settlement Conference set for 9/21/2010 01:30 PM in Courtroom C204 before Magistrate Judge Kristen L. Mix, by Magistrate Judge Kristen L. Mix on 6/16/10.(jak,) (Entered: 06/16/2010)
06/17/2010	43	STRICKEN REPLY to Response to 37 Partial MOTION for Summary Judgment on Plaintiff's Claim for Breach of Oral Argument Defendant's Response to IPH's Motion for Denial of Defendant's Motion for Partial Summary Judgment filed by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1)(Bliss, Dugan) (Modified on 6/17/2010 Stricken pursuant to 44 Minute Order)(erv,). (Entered: 06/17/2010)
06/17/2010	44	MINUTE ORDER re: 43 Reply to Response to Motion, filed by National Railroad Passenger Corporation. This pleading is a reply, not a response, as the pleading is titled. The reply is STRICKEN for failure to comply with REB Civ. Practice Standard V.I.4. by Judge Robert E. Blackburn on 6/17/2010. (erv,) (Entered: 06/17/2010)
06/17/2010	45	Unopposed MOTION for Reconsideration <i>of the Court's June 17, 2010 Minute Order and for Extension of Time and Page Limits</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit Exhibit A)(Bliss, Dugan) (Entered: 06/17/2010)
06/18/2010	46	MINUTE ORDER granting 45 defendants Unopposed Motion for Reconsideration of The Courts June 17, 2010 Minute Order and For Extension of Time and Page LimitsDefendants Response To IPHs Motion For Denial of Defendants Motion ForPartial Summary Judgment Per Fed.R.Civ.P. 56(f) [45-1] is accepted for filing. by Judge Robert E. Blackburn on 6/18/2010.(erv,) (Entered: 06/18/2010)

06/18/2010	47	RESPONSE to 39 IPH's MOTION for Denial of Defendants Motion for Partial Summary Judgment Fed. R. Civ. P.56(f), filed by Defendant National Railroad Passenger Corporation. (erv,) (Entered: 06/18/2010)
06/29/2010	48	Stipulated MOTION for Protective Order by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Order (PDF Only) (Proposed) Protective Order) (Bliss, Dugan) (Entered: 06/29/2010)
06/30/2010	49	MEMORANDUM regarding 48 Stipulated MOTION for Protective Order filed by National Railroad Passenger Corporation.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 6/30/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 06/30/2010)
06/30/2010	50	MINUTE ORDER; GRANTING 48 Motion for Protective Order. The Protective Order is accepted for filing and entered as an Order of the Court as of today's date, with the following interlineation as set forth in the attached order, by Magistrate Judge Kristen L. Mix on 6/30/2010.(klmcd) (Entered: 07/01/2010)
06/30/2010	51	PROTECTIVE ORDER, by Magistrate Judge Kristen L. Mix on 6/30/2010. (klmcd) (Entered: 07/01/2010)
08/09/2010	52	MOTION for Extension of Time to <i>Complete Discovery Per Fed.R.Civ.P.6 and 16</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B) (Smeltzer, Robert) (Entered: 08/09/2010)
08/09/2010	53	MEMORANDUM regarding 52 MOTION for Extension of Time to <i>Complete Discovery Per Fed.R.Civ.P.6 and 16</i> filed by Iowa Pacific Holdings, LLC.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 8/9/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 08/09/2010)
08/10/2010	54	MINUTE ORDER. Plaintiffs Motion for Extension of Time to Complete Discovery Per Fed.R.Civ.P. 6 and 16 52 filed 08/09/2010 is DENIED WITHOUT PREJUDICE. A telephonic hearing is set for 08/17/2010 at 10:00 a.m. to discuss the discovery extensions at issue in the motion. By Magistrate Judge Kristen L. Mix on 08/10/2010.(sah,) (Entered: 08/10/2010)
08/12/2010	55	NOTICE of Entry of Appearance of <i>Daniel J. Dunn</i> by Daniel J. Dunn on behalf of National Railroad Passenger Corporation (Dunn, Daniel) (Entered: 08/12/2010)
08/12/2010	56	NOTICE of Entry of Appearance of <i>Jaasi Munanka</i> by Jaasi Jared Munanka on behalf of National Railroad Passenger Corporation (Munanka, Jaasi) (Entered: 08/12/2010)
08/13/2010	57	Unopposed MOTION to Amend/Correct/Modify 35 Scheduling Order by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit Exhibit A)(Smeltzer, Robert) (Entered: 08/13/2010)
08/13/2010	58	MEMORANDUM regarding 57 Unopposed MOTION to Amend/Correct/Modify 35 Scheduling Order filed by Iowa Pacific Holdings, LLC. Motion referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 8/13/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebcd) (Entered: 08/13/2010)
08/16/2010	59	Unopposed MOTION to Amend/Correct/Modify 35 Scheduling Order <i>for Extension of Trial Dates</i> by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 08/16/2010)
08/17/2010	60	Minute Entry for Telephonic Motion Hearing held before Magistrate Judge Kristen L. Mix on 8/17/2010; Plaintiff's Unopposed Motion for Entry of Modified Scheduling Order 57 is GRANTED IN PART. The Scheduling Order 35 is modified as follows: Discovery Cut-off is extended to 10/4/2010. Expert Discovery Cut-off is extended to 10/18/10.

		Dispositive Motions deadline is extended to 11/8/2010. Affirmative Expert Reports deadline is extended to 9/10/10. Rebuttal Expert Reports deadline is extended to 10/1/10. These extensions will be without prejudice to the parties to jointly request additional extensions in the event that Plaintiff's Unopposed Motion to Modify Scheduling Order for Extension of Trial Dates 59 is granted by Judge Blackburn. (Court Reporter FTR - Monique Wiles) (klmcd) (Entered: 08/17/2010)
08/20/2010	61	ORDER. Plaintiffs Unopposed Motion To Modify Scheduling Order [sic] for Extension of Trial Dates 59 , filed 08/16/2010, is GRANTED. the Trial Preparation Conference scheduled for 11/19/2010, at 11:00 a.m., as well as the trial, currently scheduled to commence on 12/06/2010, are VACATED and CONTINUED. A telephonic setting conference is SET for 08/31/2010 at 10:00 a.m. (MDT). By Judge Robert E. Blackburn on 08/20/2010.(sah,) (Entered: 08/20/2010)
08/30/2010	62	Unopposed MOTION to Withdraw <i>Dugan Bliss</i> by Defendant National Railroad Passenger Corporation. (Bliss, Dugan) (Entered: 08/30/2010)
08/30/2010	63	MEMORANDUM regarding 62 Unopposed MOTION to Withdraw <i>Dugan Bliss</i> filed by National Railroad Passenger Corporation.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 8/30/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 08/30/2010)
08/30/2010	64	MINUTE ORDER. Defendants Unopposed Motion to Withdraw Dugan Bliss 62 is GRANTED. Dugan Bliss is relieved of any further representation of Defendant in the above-captioned matter. By Magistrate Judge Kristen L. Mix on 08/30/2010.(sah,) (Entered: 08/30/2010)
08/31/2010	65	SECOND TRIAL PREPARATION CONFERENCE ORDER by Judge Robert E. Blackburn on 8/31/10. Trial Preparation Conference set for 4/22/2011 at 04:00 PM in Courtroom A1001 before Judge Robert E. Blackburn. Five (5) day Jury Trial set for 5/9/2011 08:30 AM in Courtroom A1001 before Judge Robert E. Blackburn. (rebsec,) (Entered: 08/31/2010)
09/02/2010	66	Unopposed MOTION to Withdraw as Attorney of <i>Edwin P. Aro</i> by Defendant National Railroad Passenger Corporation. (Aro, Edwin) (Entered: 09/02/2010)
09/02/2010	67	MEMORANDUM regarding 66 Unopposed MOTION to Withdraw as Attorney of <i>Edwin P. Aro</i> filed by National Railroad Passenger Corporation.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 9/2/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 09/02/2010)
09/07/2010	68	MINUTE ORDER. Defendants Unopposed Motion to Withdraw of Edwin P. Aro 66 is GRANTED. Edwin P. Aro is relieved from further representation of Defendant in the above -captioned matter. By Magistrate Judge Kristen L. Mix on 09/07/2010.(sah,) (Entered: 09/07/2010)
09/21/2010	69	Minute Entry for Settlement Conference held before Magistrate Judge Kristen L. Mix on 9/21/2010; A settlement conference was held on this date, and no settlement was reached as to any claims in this action. (klmcd) (Entered: 09/22/2010)
09/27/2010	70	MOTION to Amend/Correct/Modify <i>Agreed Motion for Entry of Modified Scheduling Order</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A)(Smeltzer, Robert) (Entered: 09/27/2010)
09/27/2010	71	MEMORANDUM regarding 70 MOTION to Amend/Correct/Modify <i>Agreed Motion for Entry of Modified Scheduling Order</i> filed by Iowa Pacific Holdings, LLC.Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 9/27/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 09/27/2010)

09/27/2010	72	MINUTE ORDER. Plaintiffs Agreed Motion for Entry of Modified Scheduling Order 70 is GRANTED in part and DENIED in part. Expert Disclosure Deadline 01/11/2011; Nonexpert Discovery Deadline 01/25/2011; Rebuttal Expert Disclosure Deadline 02/09/2011; Expert Discovery Deadline 02/25/2011; Dispositive Motions Deadline 03/11/2011. The Final Pretrial Conference set for 11/08/2010 at 10:00 a.m. is vacated and RESET to 03/30/2011 at 10:00 a.m. in CourtroomC-204. The parties shall submit their proposed final pretrial order no later than 03/23/2011. By Magistrate Judge Kristen L. Mix on 09/27/2010.(sah,) (Entered: 09/27/2010)
11/05/2010	73	MINUTE ORDER. The Final Pretrial Conference set for 03/30/2011 at 10:00 a.m. is vacated and RESET to 03/29/2011, at 9:30 a.m. The parties shall submit their proposed pretrial order no later than 03/22/2011. By Magistrate Judge Kristen L. Mix on 11/05/2010. (sah,) (Entered: 11/05/2010)
12/14/2010	74	Third MOTION for Extension of Time to 35 Modify Scheduling Order by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Proposed Order (PDF Only) Joint Modified Scheduling Order)(Smeltzer, Robert) Modified on 12/15/2010 to create linkage (sah,). (Entered: 12/14/2010)
12/14/2010	75	Second MOTION for Extension of Time to <i>Modify Preparation Conference Order</i> by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 12/14/2010)
12/15/2010	76	MEMORANDUM regarding 74 Third MOTION for Extension of Time to <i>Modify Scheduling Order</i> filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 12/15/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 12/15/2010)
12/15/2010	77	MINUTE ORDER granting in part 75 Joint Motion To Modify Second Trial Preparation Conference Order. Trial Preparation Conference continued to 6/10/2011 at 03:30 PM before Judge Robert E. Blackburn. Jury Trial continued to 6/27/2011 at 08:30 AM before Judge Robert E. Blackburn, by Judge Robert E. Blackburn on 12/15/10.(mnf,) (Entered: 12/15/2010)
12/15/2010	78	THIRD TRIAL PREPARATION CONFERENCE ORDER: Five (5) Day Jury Trial set for 6/27/2011 08:30 AM in Courtroom A1001 before Judge Robert E. Blackburn. Trial Preparation Conference set for 6/10/2011 at 03:30 PM in Courtroom A1001 before Judge Robert E. Blackburn. Signed by Judge Robert E. Blackburn on 12/15/10. (mnf,) (Entered: 12/15/2010)
12/16/2010	79	MINUTE ORDER. The parties Joint Motion to Modify SchedulingOrder 74 is GRANTED. Expert Disclosure Deadline 2/25/2011; Nonexpert Discovery Deadline 3/11/2011; Rebuttal Expert Disclosure Deadline 3/28/2011; Expert Discovery Deadline 4/11/2011;Dispositive Motions Deadline 4/25/2011. The Final Pretrial Conference set for 3/29/2011 at 9:30 a.m. is vacated and RESET to 5/12/2011 at 9:30 a.m. in Courtroom C-204. The parties shall submit their proposed final pretrial order, pursuant to District of Colorado Electronic Case Filing (ECF) Procedures, no later than 5/5/2011. By Magistrate Judge Kristen L. Mix on 12/16/2010.(sah,) (Entered: 12/16/2010)
01/11/2011	80	Unopposed MOTION to Withdraw as Attorney by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Proposed Order (PDF Only) Order of Withdrawal)(Bursell, Jeffrey) (Entered: 01/11/2011)
01/11/2011	81	MEMORANDUM regarding 80 Unopposed MOTION to Withdraw as Attorney filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 1/11/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 01/11/2011)

01/12/2011	82	MINUTE ORDER granting 80 Plaintiffs Unopposed Motion for Withdrawal of Counsel. Attorney Jeffrey D. Bursell terminated, by Magistrate Judge Kristen L. Mix on 1/12/11. (mnf,) (Entered: 01/12/2011)
01/14/2011	83	ORDER denying without prejudice 37 Defendant's Motion for Partial Summary Judgment on Plaintiff's Claim for Breach of Oral Contract, by Judge Robert E. Blackburn on 1/14/11.(mnf,) (Entered: 01/14/2011)
01/27/2011	84	MINUTE ORDER. IPHs Motion for Denial of Defendants Motion For Partial Summary Judgment Per Fed. R. Civ. P. 56(f) 39 is DENIED. By Judge Robert E. Blackburn on 1/27/2011.(sah,) (Entered: 01/27/2011)
02/04/2011	85	NOTICE of Entry of Appearance by David A. DeMarco on behalf of National Railroad Passenger Corporation (DeMarco, David) (Entered: 02/04/2011)
02/28/2011	86	Joint MOTION to Amend/Correct/Modify 79 Order on Motion for Extension of Time,, by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 02/28/2011)
02/28/2011	87	MEMORANDUM regarding 86 Joint MOTION to Amend/Correct/Modify 79 Order on Motion for Extension of Time,, filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 2/28/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 02/28/2011)
03/01/2011	88	MINUTE ORDER. The parties Joint Motion to Modify Scheduling Order 86 is GRANTED. The nonexpert discovery deadline to no later than 4/8/2011. By Magistrate Judge Kristen L. Mix on 3/1/2011.(sah,) (Entered: 03/01/2011)
03/07/2011	89	Unopposed MOTION to Withdraw as Attorney by Defendant National Railroad Passenger Corporation. (Munanka, Jaasi) (Entered: 03/07/2011)
03/08/2011	90	MEMORANDUM regarding 89 Unopposed MOTION to Withdraw as Attorney filed by National Railroad Passenger Corporation. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 3/8/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 03/08/2011)
03/08/2011	91	MINUTE ORDER. The Unopposed Motion to Withdraw Jaasi J. Munanka as Counsel of Record for Defendant National Railroad Passenger Corporation 89 is GRANTED. Jaasi J. Munanka is relieved of any further representation of Defendant in the above-captioned matter. By Magistrate Judge Kristen L. Mix on 3/8/2011.(sah,) (Entered: 03/08/2011)
03/14/2011	92	Emergency MOTION to Compel <i>Disclosure</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D-1, # 5 Exhibit D-2, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G)(Smeltzer, Robert) (Entered: 03/14/2011)
03/14/2011	93	MEMORANDUM regarding 92 Emergency MOTION to Compel <i>Disclosure</i> filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 3/14/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 03/14/2011)
03/14/2011	94	Emergency MOTION to Amend/Correct/Modify <i>Scheduling Order</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A)(Smeltzer, Robert) (Entered: 03/14/2011)
03/14/2011	95	MEMORANDUM regarding 94 Emergency MOTION to Amend/Correct/Modify <i>Scheduling Order</i> filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 3/14/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 03/14/2011)

03/14/2011	96	Emergency MOTION to Amend/Correct/Modify <i>Third Trial Preparation Conference Order</i> by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 03/14/2011)
03/14/2011	97	Minute ORDER denying without prejudice 92 Plaintiff's Motion to Compel Disclosure, by Magistrate Judge Kristen L. Mix on 3/14/11.(lsw,) (Entered: 03/15/2011)
03/14/2011	98	Minute ORDER denying 94 Plaintiff's Motion to Modify Scheduling Order, by Magistrate Judge Kristen L. Mix on 3/14/11.(lsw,) (Entered: 03/15/2011)
03/15/2011	99	Minute ORDER denying without prejudice as moot 96 Emergency Motion To Modify Third Trial Preparation Conference Order, by Judge Robert E. Blackburn on 3/15/11.(lsw,) (Entered: 03/15/2011)
03/23/2011	100	Minute Entry for Telephonic Discovery Hearing held before Magistrate Judge Kristen L. Mix on 3/23/2011; This matter is before the Court regarding potential discovery disputes relating to: (1) Plaintiff's Rule 30(b)(6) deposition notice of Defendant and (2) Defendant's privilege log. Please see attached document for the Court's ruling. (Court Reporter: FTR - Monique Wiles) (klmcd) (Entered: 03/23/2011)
04/04/2011	101	Minute Entry for Telephonic Discovery Hearing held before Magistrate Judge Kristen L. Mix on 4/4/2011; On or before 4/8/2011, Plaintiff shall email to the Court a condensed version of the privilege log which contains only those documents that are in dispute. In addition, Plaintiff shall add a column to the log which explains the legal basis or bases for the dispute as to each document. On or before 4/15/2011, Defendant shall e-mail a response to the Court regarding the documents that are in dispute. (Court Reporter: FTR - Monique Wiles) (klmcd) (Entered: 04/04/2011)
04/07/2011	102	Joint MOTION to Amend/Correct/Modify 35 Scheduling Order <i>to Extend Only the Cut-Off for Fact Discovery</i> by Defendant National Railroad Passenger Corporation. (DeMarco, David) (Entered: 04/07/2011)
04/07/2011	103	MEMORANDUM regarding 102 Joint MOTION to Amend/Correct/Modify 35 Scheduling Order <i>to Extend Only the Cut-Off for Fact Discovery</i> filed by National Railroad Passenger Corporation. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 4/7/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 04/07/2011)
04/07/2011	104	MINUTE ORDER. The parties Joint Motion to Modify Scheduling Order 102 is GRANTED. The nonexpert discovery deadline is extended to 4/19/2011. By Magistrate Judge Kristen L. Mix on 4/7/2011.(sah,) (Entered: 04/07/2011)
04/21/2011	105	ORDER. Plaintiffs oral Motion is GRANTED in part, DENIED in part and HELD IN ABEYANCE in part. Please see Order for details. By Magistrate Judge Kristen L. Mix on 4/21/2011. (Attachments: # 1 Attachment 1, # 2 Attachment 2, # 3 Attachment 3, # 4 Attachment 4, # 5 Attachment 5, # 6 Attachment 6)(sah,) Modified on 4/21/2011 to indicate the complete ruling of the oral Motion(sah2,). (Entered: 04/21/2011)
04/21/2011	106	Docket Annotation re: 105 Order. Entry modified on 4/21/2011 to indicate the complete ruling of the oral Motion. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah2,) (Entered: 04/21/2011)
04/25/2011	107	Partial MOTION for Summary Judgment by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit Anshutz Website, # 2 Exhibit Ellis Dep., # 3 Exhibit Hughey Fact Sheet, # 4 Exhibit Hughey Decl., # 5 Exhibit Johnson Aff., # 6 Exhibit 12/2009 Negotiation Emails, # 7 Exhibit IPH Litigation Threats, # 8 Exhibit Post-11/3/2009 Ellis Admission, # 9 Exhibit McConville Dep., # 10 Exhibit Ellis Aff., # 11 Exhibit Hughey Dep., # 12 Exhibit Tainow Dep., # 13 Exhibit Ellis 11/16/09 Email) (DeMarco, David) (Entered: 04/25/2011)

04/29/2011	108	ORDER. Plaintiffs oral Motion to Compel the production of five email chains that Defendant has deemed to be privileged (the Motion) is GRANTED in part and DENIED in part the Motion with respect to these documents. Defendant shall produce to Plaintiff a single copy of the 12/15/09 10:58 a.m. email and Risk and Insurance Issues document from either document number 00002036, 00004465 or 0007142 on or before 5/6/2011. Each party shall bear its own costs and attorneys fees incurred regarding the Motion. By Magistrate Judge Kristen L. Mix on 4/29/2011. (sah,) (Entered: 05/02/2011)
05/05/2011	109	Proposed Pretrial Order (<i>Joint</i>) by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 05/05/2011)
05/12/2011	110	Minute Entry for Final Pretrial Conference held before Magistrate Judge Kristen L. Mix on 5/12/2011; The proposed Final Pretrial Order is not approved. The parties shall revise Sections 3,4,6 and 10 of the Proposed Final Pretrial Order as indicated by the Court on or before 5/16/2011. (Court Reporter: FTR - Monique Wiles) (klmcd) (Entered: 05/12/2011)
05/13/2011	111	NOTICE of Defendant Amtrak's Designation of Deposition Testimony by Defendant National Railroad Passenger Corporation (Attachments: # 1 Exhibit A)(DeMarco, David) (Entered: 05/13/2011)
05/16/2011	112	Proposed Pretrial Order by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 05/16/2011)
05/17/2011	113	(WITHDRAWN) MOTION to Strike Bar Affirmative Defense Per Rule 37 by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J)(Smeltzer, Robert) Modified on 5/26/2011 to WITHDRAW pursuant to the Minute Order dated 5/26/2011(sah,). (Entered: 05/17/2011)
05/18/2011	114	MEMORANDUM regarding 113 MOTION to Strike /Bar Affirmative Defense Per Rule 37 filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 5/18/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 05/18/2011)
05/18/2011	115	MINUTE ORDER. A one-hour hearing is set to resolve Plaintiff IPHs Rule 37(b)(2)(A) Motion to Strike and/or Bar Evidence of Amtraks Affirmative Defenses or, Alternatively, to Compel and for Sanctions per Rule 37(a)(3)(B)(ii) 113 on 5/27/2011 at 10:00 a.m. in Courtroom C-204, Second Floor, Byron G. Rogers United States Courthouse, 1929 Stout Street, Denver, Colorado. Any motion to appear telephonically at the hearing shall be filed no later than 5/25/2011. Defendant shall filed a written response to the Motion that does not exceed fifteen (15) pages on or before 5/25/2011. No reply shall be permitted. By Magistrate Judge Kristen L. Mix on 5/18/2011. (sah,) (Entered: 05/18/2011)
05/18/2011	116	FINAL PRETRIAL ORDER, by Magistrate Judge Kristen L. Mix on 5/18/2011. (klmcd) (Entered: 05/18/2011)
05/19/2011	117	BRIEF in Opposition to 107 Partial MOTION for Summary Judgment filed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P, # 17 Exhibit Q, # 18 Exhibit R, # 19 Exhibit S, # 20 Exhibit T, # 21 Exhibit U, # 22 Exhibit V, # 23 Exhibit W, # 24 Exhibit X, # 25 Exhibit Y, # 26 Exhibit Z, # 27 Exhibit AA, # 28 Exhibit BB, # 29 Exhibit CC, # 30 Exhibit DD, # 31 Exhibit EE, # 32 Exhibit FF, # 33 Exhibit GG, # 34 Exhibit HH, # 35 Exhibit II)(Smeltzer, Robert) (Entered: 05/19/2011)
05/20/2011	118	MOTION for Sanctions for Rule 26 Violations by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1 - Plaintiff's Rule 26(a) Disclosures, # 2 Exhibit

		2 - Defendant's 1st Interrogatories to Plaintiff, # 3 Exhibit 3 - Defendant's 1st Requests for Production of Documents to Plaintiff, # 4 Exhibit 4 - Plaintiff's Response to 1st Request for Production of Documents, # 5 Exhibit 5 - Plaintiff's Supplemental Response to 1st Request for Production of Documents, # 6 Exhibit 6 - Plaintiff's Response to 1st Interrogatories, # 7 Exhibit 7 - IPH 00268 - IPH 000277, # 8 Exhibit 8 - Plaintiff's Supplemental Rule 26(a) Disclosures, # 9 Exhibit 9 - E. Ellis Deposition Excerpts, # 10 Exhibit 10 - 5/5/11 Email and Attachment, # 11 Exhibit 11 - Metadata Screenshots, # 12 Exhibit 12 - 4/27/11 Letter)(DeMarco, David) (Entered: 05/20/2011)
05/23/2011	119	MEMORANDUM regarding 118 MOTION for Sanctions <i>for Rule 26 Violations</i> filed by National Railroad Passenger Corporation. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 5/23/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 05/23/2011)
05/23/2011	120	MINUTE ORDER. A one-hour hearing is set on Defendants Rule 37 Motion for Sanctions for Rule 26 Violations 118 on 6/9/2011 at 11:00 a.m. in Courtroom C-204, before Magistrate Judge Kristen L. Mix. Plaintiff shall file a written response to the Motion that does not exceed fifteen (15) pages on or before June 6, 2011. No reply shall be permitted. By Magistrate Judge Kristen L. Mix on 5/23/2011. (sah,) (Entered: 05/23/2011)
05/26/2011	121	MOTION to Withdraw Document <i>113, Plaintiff's Rule 37 Motion for Sanctions</i> by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 05/26/2011)
05/26/2011	122	MEMORANDUM regarding 121 MOTION to Withdraw Document <i>113, Plaintiff's Rule 37 Motion for Sanctions</i> filed by Iowa Pacific Holdings, LLC. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 5/26/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 05/26/2011)
05/26/2011	123	Unopposed MOTION to Amend/Correct/Modify 25 Answer to Complaint <i>to Withdraw Certain Affirmative Defenses</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit Amended Answer, # 2 Proposed Order (PDF Only) Proposed Order)(DeMarco, David) (Entered: 05/26/2011)
05/26/2011	124	MINUTE ORDER. Plaintiffs Notice of Withdrawal 121 is GRANTED and Motion 113 is deemed to be WITHDRAWN. The one-hour hearing set to resolve Motion 113 on 5/27/2011 is VACATED. By Magistrate Judge Kristen L. Mix on 5/26/2011.(sah,) (Entered: 05/26/2011)
05/26/2011	125	MEMORANDUM regarding 123 Unopposed MOTION to Amend/Correct/Modify 25 Answer to Complaint <i>to Withdraw Certain Affirmative Defenses</i> Unopposed MOTION to Amend/Correct/Modify by National Railroad Passenger Corporation. Motions referred to Magistrate Judge Kristen L. Mix by Judge Robert E. Blackburn on 5/26/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 05/26/2011)
05/26/2011	126	MINUTE ORDER. Defendants Unopposed Motion to Amend Answer 25 to Withdraw Certain Affirmative Defenses 123 is GRANTED. Defendants Answer 25 is deemed to be amended to withdraw affirmative defenses numbers 1, 2, 4, 5, 7-14. By Magistrate Judge Kristen L. Mix on 5/26/2011.(sah,) (Entered: 05/26/2011)
05/26/2011	127	AMENDED ANSWER to 1 Complaint, by Defendant National Railroad Passenger Corporation. (sah,) (Entered: 05/26/2011)
05/27/2011	128	Unopposed MOTION for Leave to <i>Bring Audio, Video and Computer Equipment Into the Courtroom</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Order (PDF Only))(DeMarco, David) (Entered: 05/27/2011)

05/27/2011	129	TRANSCRIPT of Telephonic Discovery Hearing held on 03/23/2011 before Magistrate Judge Mix. Pages: 1-10. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Avery Woods Reporting,) (Entered: 05/27/2011)
05/27/2011	130	Proposed Jury Instructions <i>Stipulated Statement of Claims and Defenses that Should be Given to the Jury</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Document Instruction No. Stip-01, # 2 Proposed Document Instruction No. Stip-02, # 3 Proposed Document Instruction No. Stip-03, # 4 Proposed Document Instruction No. Stip-04, # 5 Proposed Document Instruction No. Stip-05, # 6 Proposed Document Instruction No. Stip-06, # 7 Proposed Document Instruction No. Stip-07, # 8 Proposed Document Instruction No. Stip-08, # 9 Proposed Document Instruction No. Stip-09, # 10 Proposed Document Instruction No. Stip-10, # 11 Proposed Document Instruction No. Stip-11, # 12 Proposed Document Instruction No. Stip-12, # 13 Proposed Document Instruction No. Stip-13, # 14 Proposed Document Instruction No. Stip-14, # 15 Proposed Document Instruction No. Stip-15, # 16 Proposed Document Instruction No. Stip-16, # 17 Proposed Document Instruction No. Stip-17, # 18 Proposed Document Instruction No. Stip-18, # 19 Proposed Document Instruction No. Stip-19, # 20 Proposed Document Instruction No. Stip-20, # 21 Proposed Document Instruction No. Stip-21, # 22 Proposed Document Instruction No. Stip-22, # 23 Proposed Document Instruction No. Stip-23, # 24 Proposed Document Instruction No. Stip-24, # 25 Proposed Document Instruction No. Stip-25, # 26 Proposed Document Instruction No. Stip-26, # 27 Proposed Document Instruction No. Comp-P-1, # 28 Proposed Document Instruction No. Comp-P-02, # 29 Proposed Document Instruction No. Comp-P-03, # 30 Proposed Document Instruction No. Comp-D-01, # 31 Proposed Document Instruction No. Comp-D-02, # 32 Proposed Document Instruction No. Comp-D-03, # 33 Proposed Document Verdict Form P-1, # 34 Proposed Document Verdict Form D-1)(DeMarco, David) (Entered: 05/27/2011)
05/27/2011	131	Proposed Jury Instructions <i>and Verdict Form, Memorandum in Support of Competing</i> , by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 05/27/2011)
05/27/2011	132	DESIGNATION OF DEPOSITION TESTIMONY <i>of ED ELLIS (COUNTER-DESIGNATION)</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit 1) (Smeltzer, Robert) (Entered: 05/27/2011)
05/27/2011	133	Proposed Jury Instructions , <i>Memorandum Regarding Contested Instructions</i> by Defendant National Railroad Passenger Corporation. (DeMarco, David) (Entered: 05/27/2011)
05/31/2011	134	ORDER granting 128 Defendant's Unopposed Motion for Leave to Bring Audio, Video and Computer Equipment Into the Courtroom, as set forth in the order, by Judge Robert E. Blackburn on 5/31/11.(gmssl,) (Entered: 05/31/2011)
05/31/2011	135	DESIGNATION OF DEPOSITION TESTIMONY <i>of Andrews and McConville</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2) (Smeltzer, Robert) (Entered: 05/31/2011)

06/03/2011	136	OBJECTIONS to 111 Notice (Other) of <i>Amtrak Deposition Designations</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit 1)(Smeltzer, Robert) (Entered: 06/03/2011)
06/06/2011	137	REPLY to Response to 107 Partial MOTION for Summary Judgment filed by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1 - T. Hughey Deposition Word Index Excerpts, # 2 Exhibit 2 - Legible Copy of IPH's Exhibit G, # 3 Exhibit 3 - R. Andrews Deposition Excerpts, # 4 Exhibit 4 - E. Ellis Deposition Excerpts, # 5 Exhibit 5 - M. Franke Deposition Excerpts, # 6 Exhibit 6 - 11/21/09 Email from D. Knotte to R. Andrews, et al., # 7 Exhibit 7 - T. Hughey Deposition Excerpts, # 8 Exhibit 8 - 12/9/09 Email from C. Johnson to E. Ellis, # 9 Exhibit 9 - 11/16/09 Email from E. Ellis to T. Hughey, # 10 Exhibit 10 - 12/2/09 Email from R. Andrews to H. Stopplecamp, # 11 Exhibit 11 - 12/24/09 Letter from L. Hendrix to Iowa Pacific Holdings, LLC, # 12 Exhibit 12 - D. Cook Deposition Excerpts)(DeMarco, David) (Entered: 06/06/2011)
06/06/2011	138	BRIEF in Opposition to 118 MOTION for Sanctions for Rule 26 Violations filed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4)(Smeltzer, Robert) (Entered: 06/06/2011)
06/08/2011	139	MINUTE ORDER. The one-hour hearing on 6/9/2011 at 11:00 a.m. is now set to begin at 10:00 a.m. on that date. By Magistrate Judge Kristen L. Mix on 6/8/2011. (sah,) (Entered: 06/08/2011)
06/09/2011	140	Minute Entry for Motion Hearing held before Magistrate Judge Kristen L. Mix on 6/9/2011; Defendant's 118 Rule 37 Motion for Sanctions for Rule 26 Violations is GRANTED IN PART. The Defendant shall be permitted to take a Rule 30(b)(6) deposition of a representative of the Plaintiff relating to items on the May 2011 spread sheet which the Defendant believes it did not have an adequate opportunity to explore at previous depositions. The deposition may be taken for up to three hours. It shall be taken either by telephone or in person, at the Defendant's option. Plaintiff shall pay the cost of the deposition, including any costs of travel associated with bringing the deponent to Denver. The deposition must occur no later than June 17, 2011, unless defense counsel chooses to take the deposition at a later date prior to trial. In all other respects, the Motion is DENIED. (Court Reporter: FTR - Monique Wiles) (klmcd) (Entered: 06/09/2011)
06/09/2011	141	ORDER Granting in part and Denying in part Defendant's Rule 37 118 MOTION for Sanctions for Rule 26 Violations. See order for detail. The Motion is granted as to Defendant's request to reopen discovery. The Motion is denied in all other respects, by Magistrate Judge Kristen L. Mix on 6/9/11. (Attachments: # 1 Attachment 1)(lsw,) (Entered: 06/09/2011)
06/10/2011	142	ORDER denying Defendant Amtrack's Renewed 107 Motion for Partial Summary Judgment on Plaintiffs Claim for Breach of Oral Contract, by Judge Robert E. Blackburn on 6/10/11.(lsw,) (Entered: 06/10/2011)
06/10/2011	143	Unopposed MOTION for Leave to <i>Bring Computer Equipment in the Courtroom</i> by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 06/10/2011)
06/10/2011	144	Minute Entry for Trial Preparation Conference held on 6/10/2011 before Judge Robert E. Blackburn. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 06/13/2011)
06/14/2011	145	ORDER. Plaintiffs Unopposed Motion For Leave To Bring Computer Equipment Into The Courtroom 143 filed 6/10/2011, is GRANTED. By Judge Robert E. Blackburn on 6/14/2011.(sah,) (Entered: 06/14/2011)
06/14/2011	146	ORDER APPROVING JUROR QUESTIONNAIRE. By Judge Robert E. Blackburn on 6/14/2011. (Attachments: # 1 Juror Questionnaire)(sah,) (Entered: 06/14/2011)

06/20/2011	147	DESIGNATION OF DEPOSITION TESTIMONY - <i>Additional Designation</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit A - Additional Designation Chart)(DeMarco, David) (Entered: 06/20/2011)
06/20/2011	148	Proposed Voir Dire <i>Questions</i> by Defendant National Railroad Passenger Corporation. (DeMarco, David) (Entered: 06/20/2011)
06/20/2011	149	Proposed Voir Dire by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 06/20/2011)
06/20/2011	150	Proposed Findings of Fact <i>and Conclusions of Law</i> by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 06/20/2011)
06/20/2011	151	TRIAL BRIEF by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) (Entered: 06/20/2011)
06/20/2011	152	Proposed Findings of Fact , <i>Conclusions of Law and Orders</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8)(DeMarco, David) (Entered: 06/20/2011)
06/20/2011	153	TRIAL BRIEF by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10)(DeMarco, David) (Entered: 06/20/2011)
06/21/2011	154	NOTICE of Entry of Appearance by Brian Robert Orr on behalf of Iowa Pacific Holdings, LLC (Orr, Brian) (Entered: 06/21/2011)
06/22/2011	155	Unopposed MOTION for Leave to <i>to Bring iPhone into the Courtroom</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Order (PDF Only)) (DeMarco, David) (Entered: 06/22/2011)
06/22/2011	156	ORDER. Defendants Unopposed Motion For Leave To Bring iPhone Into The Courtroom 155 filed Ju6/22/2011, is GRANTED. Ms. Catt, who is permitted by this order to enter the courthouse with electronic equipment SHALL PRESENT a copy of this order to the Court Security Officers stationed at the entrance of the courthouse. By Judge Robert E. Blackburn on 6/22/2011.(sah,) (Entered: 06/23/2011)
06/23/2011	157	Unopposed MOTION for Leave to <i>Bring BlackBerry Into the Courtroom</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Proposed Order (PDF Only))(Orr, Brian) (Entered: 06/23/2011)
06/24/2011	158	ORDER. Plaintiffs Unopposed Motion For Leave To Bring Blackberry IntoThe Courtroom 157 filed 6/23/2011, is GRANTED. Mr. Smeltzer, who is permitted by this order to enter the courthouse with electronic equipment, SHALL PRESENT a copy of this order to the Court Security Officers stationed at the entrance of the courthouse. By Judge Robert E. Blackburn on 6/24/2011.(sah,) (Entered: 06/24/2011)
06/27/2011	159	Minute Entry for Jury Trial - Day One held on 6/27/2011 before Judge Robert E. Blackburn. Jury impaneled, evidence entered. Trial continued. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 06/27/2011)
06/27/2011	160	Unopposed MOTION for Leave to <i>Bring iPhone and Blackberry into the Courtroom</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Order (PDF Only))(DeMarco, David) (Entered: 06/27/2011)
06/28/2011	161	ORDER. Defendants Unopposed Motion For Leave To Bring iPhone and Blackberry Into The Courtroom 160 filed 6/27/2011, is GRANTED. That Mr. Corl, who is permitted by

		this order to enter the courthouse with electronic equipment SHALL PRESENT a copy of this order to the Court Security Officers stationed at the entrance of the courthouse. By Judge Robert E. Blackburn on 6/28/2011.(sah,) (Entered: 06/28/2011)
06/28/2011	162	Minute Entry for Jury Trial - Day Two held on 6/28/2011 before Judge Robert E. Blackburn. Evidence entered. Trial continued. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 06/28/2011)
06/28/2011	163	Unopposed MOTION for Leave to <i>Bring Laptop Computer</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Proposed Order (PDF Only))(Orr, Brian) (Entered: 06/28/2011)
06/29/2011	164	ORDER. Plaintiffs Unopposed Motion For Leave To Bring Laptop Computer Into The Courtroom 163 filed 6/28/2011, is GRANTED. Mr. Marko, who is permitted by this order to enter the courthouse with electronic equipment SHALL PRESENT a copy of this order to the Court Security Officers stationed at the entrance of the courthouse. By Judge Robert E. Blackburn on 6/29/2011.(sah,) (Entered: 06/29/2011)
06/29/2011	165	Minute Entry for Jury Trial - Day Three held on 6/29/2011 before Judge Robert E. Blackburn. Evidence entered. Trial continued. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 06/29/2011)
06/30/2011	166	Minute Entry for Jury Trial - Day Four held on 6/30/2011 before Judge Robert E. Blackburn. Evidence entered. Trial continued. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 06/30/2011)
07/05/2011	167	DESIGNATION OF DEPOSITION TESTIMONY <i>and Counter-Designation of Jon S. Tainow</i> by Plaintiff Iowa Pacific Holdings, LLC, Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit A - Designation Chart)(DeMarco, David) (Entered: 07/05/2011)
07/05/2011	168	Unopposed MOTION for Extension of Time to <i>of Orders Permitting iPhones, Blackberrys and Computers into the Courtroom</i> , Unopposed MOTION for Leave to <i>Bring an Additional Computer into the Courtroom</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Proposed Order (PDF Only))(DeMarco, David) (Entered: 07/05/2011)
07/05/2011	169	Minute Entry for Jury Trial - Day Five held on 7/5/2011 before Judge Robert E. Blackburn. Evidence entered. Trial continued. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 07/05/2011)
07/05/2011	170	Unopposed MOTION for Extension of Time to <i>Bring Computer and Blackberries into the Courtroom</i> by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Proposed Order (PDF Only))(Orr, Brian) (Entered: 07/05/2011)
07/06/2011	171	ORDER. Defendants Unopposed Motion For Extension of Orders To Bring iPhones, Blackberrys and Computers Into The Courtroom and For Leave To Bring an Additional Computer Into Courtroom 168 filed 7/5/2011, is GRANTED. Plaintiffs Unopposed Motion For Extension of Orders Granting Leave To Bring Blackberries and Computers Into The Courtroom 170 filed 7/5/2011, is GRANTED. By Judge Robert E. Blackburn on 7/6/2011.(sah,) (Entered: 07/06/2011)
07/06/2011	172	Minute Entry for Jury Trial - Day Six held on 7/6/2011 before Judge Robert E. Blackburn. Evidence entered, jury instructed, closing arguments. Trial continued. (Court Reporter: Suzanne Claar) (rebcd) (Entered: 07/07/2011)
07/07/2011	173	Minute Entry for Jury Trial - Day Seven on 7/7/2011 before Judge Robert E. Blackburn. JURY VERDICT. Trial concluded. (Court Reporter: Suzanne Claar) (Attachments: # 1 Exhibit List, # 2 Plaintiff's Witness List, # 3 Defendant's Witness List, # 4 Jurors' Note to

		Court, # 5 Representation of Verdict Form) (rebcd,) (Additional attachment(s) added on 7/12/2011: # 6 Exhibit Instruction No. 1) (sah,). Modified on 7/12/2011 entry modified to add a Juror Instruction No. 1 (sah,). (Entered: 07/07/2011)
07/07/2011	174	Stipulation and ORDER regarding custody of trial exhibits by Judge Robert E. Blackburn on 7/7/11. (rebcd) (Entered: 07/07/2011)
07/11/2011	175	Proposed Jury Instructions <i>Tendered by the Parties to the Court on July 6, 2011</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit Instruction No. Comp-D-04, # 2 Exhibit 07/06/2011 Email, # 3 Exhibit Instruction No. Comp-P-04)(DeMarco, David) (Entered: 07/11/2011)
07/12/2011	176	Docket Annotation re: 173 Jury Trial - Completed,, Terminate Deadlines and Hearings. Entry modified on 7/12/2011 entry modified to add a Juror Instruction No. 1. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 07/12/2011)
07/13/2011	177	FINAL JUDGMENT by Clerk. Plaintiff, Iowa Pacific Holdings, LLC, is awarded reliance damages for breach of oral contract as follows: \$829,325.00 (for capitalization and equipment); \$425,000.00 (for advertising); and \$425,000.00 (for labor); less \$529,375.00 for its failure to mitigate damages, for a total of \$1,149,950.00. Post-judgment interest shall accrue at the rate of 0.19 per cent from the date of entry of judgment. Costs shall be awarded to the plaintiff and taxed as prescribed under Rule 54(b)(1) and Local Rule 54.1. By Clerk on 7/13/2011. (sah,) (Entered: 07/13/2011)
07/25/2011	178	Proposed Bill of Costs by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Continuation of Main Document Memorandum in Support of Iowa Pacific's Bill of Costs, # 2 Exhibit 1 to Memorandum, # 3 Exhibit 2 to Memorandum, # 4 Exhibit 3 to Memorandum, # 5 Exhibit 4 to Memorandum, # 6 E Exhibit 5 to Memorandum, # 7 Exhibit 6 to Memorandum, # 8 Exhibit 7 to Memorandum, # 9 Exhibit 8 to Memorandum, # 10 Exhibit 9 to Memorandum, # 11 Exhibit 10 to Memorandum, # 12 Exhibit 11 to Memorandum, # 13 Exhibit 12 to Memorandum, # 14 Exhibit 13 to Memorandum, # 15 Exhibit 14 to Memorandum)(Orr, Brian) Modified on 7/26/2011 to remove repetitive text (sah2,). (Entered: 07/25/2011)
08/10/2011	179	MOTION to Alter Judgment re 177 Clerk's Judgment,, <i>or, in the Alternative</i> , MOTION for New Trial <i>on Damages</i> by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1 - Trial Exhibit 192, # 2 Exhibit 2 - DC Jury Instruction - Contract, # 3 Exhibit 3 - Sanction Hearing Transcript Excerpts, # 4 Exhibit 4 - Trial Exhibit 181, # 5 Exhibit 5 - Trial Exhibit 187)(DeMarco, David) (Entered: 08/10/2011)
08/16/2011	180	ORDER. The claim for promissory estoppel of the plaintiff, Iowa Pacific Holdings, LLC, is RESOLVED against the plaintiff and in favor of the defendant, National Railroad Passenger Corporation. The partial Final Judgment 177 filed 7/13/2011, is SUPPLEMENTED to provide that judgment SHALL ENTER on behalf of the defendant, National Railroad Passenger Corporation, against the plaintiff, Iowa Pacific Holdings, LLC, on its claim for promissory estoppel, which claim is DISMISSED WITH PREJUDICE. By Judge Robert E. Blackburn on 8/16/2011.(sah,) (Entered: 08/16/2011)
08/16/2011	181	STIPULATION re 178 Proposed Bill of Costs,, by Plaintiff Iowa Pacific Holdings, LLC. (Orr, Brian) (Entered: 08/16/2011)
08/17/2011	182	Bill of Costs Taxed in amount of \$ 16,885.08 against Defendant. (sah,) Modified on 8/19/2011 to correct the amount taxed (sah,). (Entered: 08/17/2011)
08/19/2011	183	Unopposed MOTION to Amend/Correct/Modify 182 Costs Taxed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Proposed Order (PDF Only))(Orr, Brian) (Entered: 08/19/2011)

08/19/2011	184	SUPPLEMENTED FINAL JUDGMENT. Signed by Clerk on 8/19/2011. (sah,) (Entered: 08/19/2011)
08/22/2011	185	Docket Annotation re: 182 Costs Taxed. Entry modified on 8/17/2011 to correct the amount taxed. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 08/22/2011)
08/23/2011	186	MINUTE ORDER denying 183 Motion to Amend/Correct/Modify as moot. The amount taxed as shown in the entry was a clerical error. This was corrected by a docket text entry #185 on 8/22/11. By Judge Robert E. Blackburn on 8/23/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebsec,) (Entered: 08/23/2011)
08/31/2011	187	RESPONSE to 179 MOTION to Alter Judgment re 177 Clerk's Judgment,or, in the Alternative MOTION to Alter Judgment MOTION for New Trial on Damages filed by Plaintiff Iowa Pacific Holdings, LLC. (Smeltzer, Robert) Modified on 9/1/2011 to remove repetitive text (sah,). (Entered: 08/31/2011)
09/02/2011	188	MOTION to Supplement 184 Clerk's Judgment, MOTION for Leave to File Excess Pages by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit 1 - Supplemental Post-Trial Motion, # 2 Exhibit A to Supplemental Post-Trial Motion, # 3 Exhibit B to Supplemental Post-Trial Motion)(DeMarco, David) (Entered: 09/02/2011)
09/02/2011	189	MINUTE ORDER granting 188 Motion to Supplement; granting 188 Motion for Leave to File Excess Pages by Judge Robert E. Blackburn on 9/2/11. Plaintiff's time to respond to the motion as supplemented shall be as prescribed by Local Rule 7.1C and shall run from the date of the order granting the motion to supplement. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(rebcd) (Entered: 09/02/2011)
09/16/2011	190	MOTION to Alter Judgment re 184 Clerk's Judgment <i>and</i> , MOTION to Amend/Correct/Modify 180 Order on Motion to Alter Judgment,,, Order on Motion for New Trial,, <i>Resolving Plaintiff's Promissory Estoppel Claim</i> by Plaintiff Iowa Pacific Holdings, LLC. (Orr, Brian) (Entered: 09/16/2011)
09/19/2011	191	REPLY to Response to 179 MOTION to Alter Judgment re 177 Clerk's Judgment,, <i>or, in the Alternative</i> MOTION to Alter Judgment re 177 Clerk's Judgment,, <i>or, in the Alternative</i> MOTION for New Trial <i>on Damages</i> filed by Defendant National Railroad Passenger Corporation. (Attachments: # 1 Exhibit A - Trial Exhibit 76, # 2 Exhibit B - Trial Exhibit 12)(DeMarco, David) (Entered: 09/19/2011)
09/23/2011	192	RESPONSE to 188 MOTION to Supplement 184 Clerk's Judgment MOTION to Supplement 184 Clerk's Judgment MOTION for Leave to File Excess Pages filed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A (Trial Exhibit 29), # 2 Exhibit B (Trial Exhibit 31), # 3 Exhibit C (Trial Exhibit 37), # 4 Exhibit D (Trial Exhibit 50), # 5 Exhibit E (Trial Exhibit 83))(Orr, Brian) (Entered: 09/23/2011)
09/29/2011	193	TRANSCRIPT of Motion Hearing held on 06/09/2011 before Magistrate Judge Mix. Pages: 1-26. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 1/3/2012. (Avery Woods Reporting,) (Entered: 09/29/2011)

10/11/2011	194	REPLY to Response to 188 MOTION to Supplement 184 Clerk's Judgment MOTION to Supplement 184 Clerk's Judgment MOTION for Leave to File Excess Pages (<i>Reply in Support of Docket No. 188-1</i>) filed by Defendant National Railroad Passenger Corporation. (DeMarco, David) (Entered: 10/11/2011)
10/11/2011	195	RESPONSE to 190 MOTION to Alter Judgment re 184 Clerk's Judgment <i>and</i> MOTION to Alter Judgment re 184 Clerk's Judgment <i>and</i> MOTION to Amend/Correct/Modify 180 Order on Motion to Alter Judgment,,, Order on Motion for New Trial,, <i>Resolving Plaintiff's Promissory Estoppel Claim</i> MOTION to Amend/Correct/Modify 180 Order on Motion to Alter Judgment,,, Order on Motion for New Trial,, <i>Resolving Plaintiff's Promissory Estoppel Claim</i> filed by Defendant National Railroad Passenger Corporation. (DeMarco, David) (Entered: 10/11/2011)
10/12/2011	196	NOTICE re 190 MOTION to Alter Judgment re 184 Clerk's Judgment 180 Order on Motion to Alter Judgment, Order on Motion for New Trial,Resolving Plaintiff's Promissory Estoppel Claim 179 MOTION to Alter Judgment re 177 Clerk's Judgment,or, in the Alternative 187 Response to Motion, 188 MOTION to Supplement, 191 Reply to Response to Motion, 192 Response to Motion, JOINT NOTICE of Revised Citations to the June 30, July 5, July 6, and July 7 Trial Transcripts in the Parties' Post-Trial Briefs by Plaintiff Iowa Pacific Holdings, LLC, Defendant National Railroad Passenger Corporation (Attachments: # 1 Exhibit 1)(DeMarco, David) Modified on 10/13/2011 to remove repetitive text (sah2,). (Entered: 10/12/2011)
10/28/2011	197	REPLY to Response to 190 MOTION to Alter Judgment re 184 Clerk's Judgment MOTION to Amend/Correct/Modify 180 Order on Motion to Alter Judgment, Order on Motion for New Trial,Resolving Plaintiff's Promissory Estoppel Claim filed by Plaintiff Iowa Pacific Holdings, LLC. (Attachments: # 1 Exhibit A (Trial Exhibit 26), # 2 Exhibit B (Trial Exhibit 32))(Orr, Brian) Modified on 10/31/2011 to remove repetitive text (sah,). (Entered: 10/28/2011)
02/14/2012	198	ORDER. Defendants Supplemental Post-Trial Motion for Judgment Notwithstanding the Verdict or, in the Alternative, for a New Trial 188 filed 9/2/2011, is DENIED. Plaintiffs Motion To Alter or Amend the Findings of Fact and Judgment Regarding its Promissory Estoppel Claim 190 filed 9/16/2011 is GRANTED. The Findings of Fact, Conclusions of Law, and Orders 180 filed 8/16/2011, are VACATED. Plaintiffs claim for promissory estoppel is DENIED AS MOOT. The Supplemented Final Judgment 184 filed 8/19/2011, shall be AMENDED by the deletion of paragraphs 8 and 9 at page 2, and the following paragraph 8 SUBSTITUTED. By Judge Robert E. Blackburn on 2/14/2012.(sah,) (Entered: 02/14/2012)
02/14/2012	199	ORDER. Defendants Motion To Alter or Amend Judgment or, in the Alternative, Motion for New Trial on Damages 179 filed 8/10/2011, is DENIED.By Judge Robert E. Blackburn on 2/14/2012. (sah,) (Entered: 02/14/2012)
02/17/2012	200	AMENDED SUPPLEMENTED FINAL JUDGMENT. The claim for promissory estoppel of the plaintiff, Iowa Pacific Holdings, LLC, is DENIED AS MOOT, and the partial Final Judgment 177 filed 7/13/2011, is SUPPLEMENTED accordingly. By Deputy Clerk on 2/17/2012. (sah,) (Entered: 02/17/2012)
02/29/2012	201	SATISFACTION OF JUDGMENT by Plaintiff Iowa Pacific Holdings, LLC. (Orr, Brian) (Entered: 02/29/2012)

PACER Service Center

Transaction Receipt

04/10/2026 15:48:14			
PACER Login:	ehelland	Client Code:	
Description:	Docket Report	Search Criteria:	1:09-cv-02977-REB-KLM
Billable Pages:	18	Cost:	1.80
Exempt flag:	Exempt	Exempt reason:	Exempt Court Order